



WRAPSTAR INDEPENDENT CONTRACTOR TECHNOLOGY SERVICES AGREEMENT

Wrrapd, Inc. -- Gift Wrapping Network · WrapStar App

Scope note: Under this Agreement, WrapStars provide **gift-wrapping services only** via the **WrapStar App**. Packages are brought to the wrapping location and collected when wrapping is done. Final-mile delivery, PO Box collection, floral purchasing, and driving are **not** WrapStar duties.

This WrapStar Independent Contractor Technology Services Agreement (the "**Agreement**") is entered into by and between **Wrrapd, Inc.**, a company doing business as Wrrapd, with notice and legal address at **7901 4th Street N, Ste. 300, St. Petersburg, FL 33702-4399** ("**Wrrapd**" or the "**Company**"), and the undersigned individual or business entity ("**Contractor**" or "**WrapStar**"). Wrrapd and Contractor are each a "**Party**" and together the "**Parties**."

By signing, Contractor acknowledges that Contractor has read, understands, and agrees to be bound by this Agreement and by the concurrently executed Mutual Arbitration Agreement, Background Check Disclosure and Authorization, WrapStar Code of Conduct and Platform Guidelines, and Third-Party Litigation Funding Disclosure (collectively, the "**Companion Documents**").

1. Purpose and Relationship

1.1 Wrrapd operates a technology platform and related services that connect customers with independent contractors who provide professional **gift-wrapping** of merchandise and related items (the "**Services**"). Final-mile delivery, courier transport, PO Box collection, floral purchasing, and driving are **outside the scope** of the Services under this Agreement and are performed by persons Wrrapd assigns, not by WrapStars.

1.2 Contractor desires to provide the Services as an independent contractor using Wrrapd's systems, including the dedicated **WrapStar mobile application** (the "**WrapStar App**"), related web or portal tools, order assignment and status tools, Contractor's approved **wrapping location**, and related systems (collectively, the "**Platform**"). The WrapStar App is a contractor-facing application that is **separate from** any consumer-facing Wrrapd application.

1.3 Nothing in this Agreement creates an employment, partnership, joint venture, or general agency relationship. Contractor is not authorized to bind Wrrapd or to represent that Contractor is an employee of Wrrapd.

2. Independent Contractor Status

2.1 Contractor is and shall remain an **independent contractor**. Contractor is solely responsible for all federal, state, and local taxes, withholdings, and filings arising from compensation under this Agreement. Wrrapd will issue IRS

Form **1099-NEC** (or successor) as required by law.

2.2 Contractor shall provide, at Contractor's own expense except as Wrrapd expressly agrees in writing, the labor, workspace, a compatible smartphone capable of running the WrapStar App, camera capability for required live session and proof, internet access, and **ordinary wrapping materials**, including gift-wrapping paper, small boxes when an item requires a box, scissors, cutters, and tape. Wrrapd does **not** require Contractor to purchase commercial insurance as a condition of engagement under this Agreement.

2.3 Subject to Platform rules and brand, quality, proof, and timing standards published by Wrrapd (including in the WrapStar App), Contractor controls the manner and means of performing the Services, including when and where wrapping is performed at an approved location.

2.4 Contractor may accept or decline orders as the WrapStar App and Platform permit, may provide similar services to others, and is not guaranteed any minimum volume of orders or income.

2.5 Contractor shall not subcontract, assign, or delegate performance of the Services to any third party without Wrrapd's prior written consent. If Contractor is an entity, individuals performing Services on its behalf must be disclosed to Wrrapd upon request and must satisfy applicable screening and Platform requirements.

3. Eligibility; Capacity; Representations

3.1 Contractor represents and warrants that: (a) if an individual, Contractor is at least **nineteen (19)** years of age; (b) Contractor is legally authorized to work in the United States and to perform the Services in the geographic areas in which Contractor operates; (c) if an entity, the person signing has full authority to bind the entity; (d) all information provided in Contractor's application, W-9, and onboarding materials is true and complete; and (e) Contractor is not subject to any agreement that would conflict with this Agreement.

3.2 Contractor shall promptly update Wrrapd if any representation in this Section 3 becomes inaccurate.

4. Scope of Services (Wrapping Only)

4.1 Contractor's role is **gift wrapping only**. Contractor is not engaged under this Agreement as a delivery driver, courier, or final-mile carrier, and is not required to operate a vehicle, collect packages from PO Boxes, purchase flowers, or meet customers or gift recipients.

4.2 Contractor agrees to:

(a) Maintain an approved **wrapping location** and agreed **handoff windows** so that the person Wrrapd assigns for drop-off and collection may **bring inbound packages** and later **collect finished wrapped gifts**. Packages are brought to Contractor and collected when wrapping is done -- Contractor does **not** pick up from PO Boxes or hand off to common carriers;

(b) When beginning work on a package, inspect for visible damage, shortage, or suspected tampering, and report the same to Wrrapd promptly and in any event within the timeframe published in Platform standards (and no later than twenty-four (24) hours after discovery);

- (c) Professionally gift-wrap items to Wrrapd brand standards using approved materials, techniques, and any order-specific designs or messages. If flowers are present on an order card for wrapping together with a gift, Contractor shall wrap or present them as the order instructions require; Contractor does **not** purchase flowers;
- (d) Start a **live session** and record and upload clear **video and/or other proof** through the WrapStar App (or other Platform channel Wrrapd designates) as required by Section 6;
- (e) Affix the Platform **barcode / delivery label** Wrrapd provides (or that the WrapStar App generates) to each finished gift, include the label in finished-wrap documentation, and stage wrapped orders for collection by the person Wrrapd assigns, according to Platform / WrapStar App instructions. Contractor is **not** required to transport goods to a recipient's address and shall **not** contact customers or giftees;
- (f) Maintain a clean, professional wrapping workspace; and
- (g) Install and use the WrapStar App on a compatible smartphone, keep the App reasonably up to date, and follow in-App workflows for availability, handoff windows, status updates, communications, live session, and proof uploads.

4.3 Wrrapd may update published wrapping standards and workflows prospectively via the Platform or email. Any future expansion of Contractor's role to include delivery would require a separate written agreement (or amendment) expressly covering driving and delivery.

5. Custody of Goods; Care of Merchandise

5.1 From the time Contractor takes possession of customer merchandise, wrapping materials supplied for an order, or finished gifts until Contractor releases the goods to the person Wrrapd assigns, in accordance with Platform instructions, Contractor shall exercise **reasonable care** as a bailee for the benefit of Wrrapd and its customers.

5.2 Contractor is responsible for loss, theft, damage, or destruction of goods in Contractor's possession to the extent caused by Contractor's **negligence, willful misconduct, unauthorized use, or failure to exercise reasonable care**. Contractor is **not** responsible for: (a) damage or shortage that existed upon receipt and that Contractor timely reported under Section 4.2(b); (b) loss or damage occurring after proper release per Platform instructions; or (c) loss caused by Wrrapd's gross negligence or willful misconduct.

5.3 Contractor shall not: (a) use, consume, gift, sell, or appropriate any customer merchandise for personal purposes; (b) open or alter packages beyond what is reasonably necessary to inspect, wrap, and create required proof; or (c) leave goods unsecured or accessible to unauthorized persons.

5.4 Title to customer merchandise does not pass to Contractor. Contractor acquires no ownership interest in gifts, designs, or customer data.

5A. Refusal, Detention, and Demand-for-Return

5A.1 **Duty to perform or release.** If Contractor will not wrap an accepted order, or will not complete wrapping already begun, Contractor shall say so in the WrapStar App **immediately** and shall make every item in Contractor's possession available for pickup by the person Wrrapd assigns within **two (2) hours** of that notice (or the shorter

window then published in the App). Silence, delay, or "I will wrap it later" after a refusal is not compliance.

5A.2 **No lien.** Contractor has **no right** to hold, detain, hide, or condition the return of goods for unpaid compensation, price disputes, ratings, or any other claim against Wrrapd. Pay disputes are resolved under this Agreement and the Mutual Arbitration Agreement -- not by keeping merchandise.

5A.3 **Demand.** Wrrapd may demand return of any goods at any time, with or without terminating this Agreement. Contractor shall stage the goods at the door or wrapping entrance of the approved location for the person Wrrapd sends. Failure to make the goods available by the stated deadline is **conversion** and unauthorized detention. Wrrapd may: (a) report the matter to law enforcement; (b) withhold, offset, or claw back compensation; (c) charge Contractor the replacement cost of the goods plus wrap, materials, and makeup delivery; and (d) terminate this Agreement immediately.

5A.4 **Access.** Contractor has no right to require Wrrapd personnel or any person Wrrapd assigns to enter Contractor's home. Goods must be staged at the door or wrapping entrance.

5A.5 This Section 5A is a material term. Breach is grounds for immediate suspension and termination, in addition to any civil or criminal remedies.

6. Live Session, Recording, and Proof (Non-Negotiable)

6.1 **Live session.** For every order, Contractor shall start a **live session** in the WrapStar App **before unboxing** and keep the session running through inspection, wrapping, sealing, barcode affix, and the finished-gift photo. Wrrapd may observe the session in real time. A recording is stored. The camera shall stay on the gift and wrapping surface, not on housemates, children, or private areas of the home. If the live link drops, Contractor shall **stop wrapping**, restart the session, and then continue.

6.2 For every order, Contractor shall also create and submit clear proof **through the WrapStar App** (or another Platform channel Wrrapd designates) in the format(s) required by the Platform, which may include video, photographs, or both, showing:

(a) **Unboxing / inspection** -- opening of the retailer package (or beginning work on the item) and the condition of contents; (b) **Wrapping process** -- wrapping consistent with brand standards; and (c) **Finished gift** -- completed exterior wrap (and flowers or add-ons if applicable), including the affixed barcode / delivery label.

6.3 Contractor is **not** required to video-record or photograph exchanges with the person Wrrapd assigns for drop-off or collection. Chain-of-custody at those transfer points is handled through Platform / WrapStar App status updates.

6.4 Failure to start or maintain the live session, or to provide complete, timely, and authentic proof under Section 6.2, may result in non-payment for the affected order, chargeback or clawback of amounts already paid, immediate suspension, and/or termination.

6.5 Contractor grants Wrrapd a perpetual, worldwide, royalty-free license to use, store, reproduce, and display live-session media and proof media for quality assurance, customer support, dispute resolution, claims handling, training, marketing (in anonymized or consented form where required), legal compliance, and operation of the Platform. Contractor shall not delete required proof from Platform systems. Live sessions are for Wrrapd staff only and are not a public stream.

7. WrapStar App and Platform

7.1 License. Subject to this Agreement, Wrrapd grants Contractor a limited, non-exclusive, non-transferable, revocable license to download, install, and use the WrapStar App and related Platform tools solely to perform the Services. The WrapStar App is licensed, not sold. Contractor has no ownership interest in the WrapStar App, Platform, Wrrapd trademarks, customer relationships, order data, or related intellectual property.

7.2 Separate from consumer apps. The WrapStar App is distinct from any Wrrapd consumer application. Contractor shall not use consumer apps, or misuse the WrapStar App, to circumvent Platform workflows, scrape data, or contact customers or recipients except as the WrapStar App expressly enables for wrapping operations.

7.3 Account and credentials. Contractor shall maintain only one WrapStar App account (unless Wrrapd approves otherwise in writing), keep login credentials confidential, not share the account with others, and promptly notify Wrrapd of any unauthorized access. Contractor is responsible for activity under Contractor's account.

7.4 Device and permissions. Contractor shall use a compatible smartphone and grant the WrapStar App those device permissions reasonably needed for the Services (for example, camera for live session and proof uploads, notifications for order offers and messages, and storage or media access for uploading proof). Because Contractor does not perform delivery under this Agreement, continuous background location tracking for driving is not required; if the App requests coarse location or similar data for metro assignment, availability, or fraud prevention, Contractor will enable such permissions as published in the App or onboarding materials.

7.5 Order workflow. Order offers, acceptance or decline (as the App permits), status updates, earnings views, live session, proof uploads, and related contractor communications will primarily occur in the WrapStar App. Contractor shall keep notifications enabled to a reasonable extent while available for orders so that time-sensitive offers and instructions can be received.

7.6 Updates; availability. Wrrapd may update, modify, suspend, or discontinue WrapStar App features. Contractor shall install updates when reasonably required for security or operability. The WrapStar App and Platform are provided on an "as available" basis; Wrrapd does not guarantee uninterrupted access, and temporary outages do not by themselves constitute breach, provided Wrrapd uses commercially reasonable efforts to restore service.

7.7 Prohibited App conduct. Contractor shall not: reverse engineer, decompile, or attempt to extract source code from the WrapStar App (except to the extent such restriction is prohibited by law); interfere with Platform security or integrity; use bots, scripts, or unauthorized automation to accept orders or manipulate status; or upload malware or unlawful content.

7.8 App data. Data collected through the WrapStar App (account data, device data, order activity, live-session media, proof media, and communications) may be used by Wrrapd to operate the Platform, assign and fulfill orders, pay Contractor, ensure quality and safety, prevent fraud, comply with law, and improve the Services, consistent with Wrrapd's published privacy notices for contractors (if any) and applicable law.

7.9 Changes. Wrrapd may modify Platform features, assignment logic, proof requirements, and published standards at any time. Material changes to compensation methodology will be communicated via the WrapStar App, Platform, or email and will apply prospectively.

7.10 End of access. Upon termination or request, Contractor shall cease use of the WrapStar App and Platform, delete local copies of Confidential Information where feasible, and return or securely destroy any Wrrapd property and credentials (except proof already uploaded to Wrrapd).

8. Compensation

8.1 Contractor is paid an **hourly rate**, not a per-order piece rate. The rate is determined by the **Compensation Schedule** then published in the WrapStar App or on the Platform (including ZIP-specific rates: exact ZIP, then 3-digit prefix, then the WrapStar default). Wrrapd may change published rates prospectively.

8.2 **Minimum paid hour.** For each accepted wrap window in which Contractor finishes at least one gift (or otherwise performs assigned wrapping work as the WrapStar App records), Contractor is paid **not less than one (1) hour** at the applicable hourly rate, even if fewer than twelve finished gifts are assigned or completed in that window (for example, four gifts still earn one full paid hour). Wrrapd does not guarantee volume or income beyond this floor for accepted windows actually worked.

8.3 **Pace and fractional hours.** The wrapping conversion rate is **twelve (12) finished gifts = one (1) paid hour**. Paid wrapping hours for a window equal the **greater of** (a) one (1) hour, or (b) finished gifts ÷ 12, including fractional hours. **Example:** thirty-seven (37) finished gifts earn **three (3) hours plus one-twelfth (1/12) of an hour**. A gift is finished only when it is wrapped to published standards, documented under Section 6, labeled (including the delivery barcode), and ready for collection.

8.4 **Incentive compensation.** From time to time -- particularly during higher-demand periods -- Wrrapd may offer **discretionary incentive or bonus compensation**, including additional pay for wrapping above the twelve-gifts-per-hour pace, peak-period bonuses, or other incentives published in the Compensation Schedule, Command Center, or WrapStar App. Incentive terms, amounts, eligibility, and duration are set solely by Wrrapd, apply only for the periods stated, and create no ongoing entitlement after an incentive period ends.

8.5 **Materials.** Ordinary wrapping supplies -- including gift-wrapping paper, small boxes when needed, scissors, cutters, and tape -- are Contractor's responsibility unless Wrrapd expressly provides a material or reimbursement in writing for a given order.

8.6 Wrrapd may withhold, offset, or claw back compensation for fraud, failed or fabricated proof, skipped live session, chargebacks, amounts attributable to Contractor's negligence or willful misconduct under Section 5 or 5A, overpayments, no-show costs under Section 16A, or other amounts Contractor owes Wrrapd.

8.7 Contractor is solely responsible for all taxes on compensation. Contractor shall complete Form W-9 (or equivalent) before payouts.

8.8 Tips are not part of WrapStar compensation unless the Compensation Schedule later states otherwise.

9. Background Checks and Onboarding

9.1 As a condition of engagement and continued access to the WrapStar App and orders, Contractor agrees to complete all required onboarding steps, including tax forms, identity verification, orientation, and the separate **Background Check Disclosure and Authorization**.

9.2 Wrrapd may condition activation or continued engagement on satisfactory screening results consistent with applicable law.

10. No Insurance Mandate

10.1 Wrrapd does **not** require Contractor to maintain commercial general liability, inland marine, bailee, automobile, or other insurance as a condition of performing the Services under this Agreement.

10.2 Nothing in this Section limits Contractor's obligations under Section 5 (reasonable care), Section 5A (refusal and return), or Section 11 (indemnification for Contractor's own wrongful acts), or prevents Contractor from voluntarily maintaining insurance for Contractor's own protection.

11. Indemnification

11.1 Contractor shall indemnify, defend, and hold harmless Wrrapd and its officers, directors, members, managers, employees, agents, and affiliates from and against any claims, damages, losses, liabilities, penalties, and expenses (including reasonable attorneys' fees) arising out of or relating to: (a) Contractor's negligence or willful misconduct in performing the Services or using the WrapStar App; (b) loss, theft, damage, or unauthorized use of goods in Contractor's custody to the extent Contractor is responsible under Section 5 or 5A; (c) injury to persons or property caused by Contractor; (d) Contractor's breach of law or this Agreement; (e) Contractor's misuse of personal data, Confidential Information, or the WrapStar App; or (f) any claim that Contractor is an employee of Wrrapd to the extent based on Contractor's acts or omissions--except to the extent caused by Wrrapd's gross negligence or willful misconduct.

12. Confidentiality; Non-Disclosure; Data Protection

12.1 **Confidential Information.** "Confidential Information" means all non-public information that Contractor obtains, observes, creates, or accesses in connection with the application process, onboarding, the Services, the Platform, or the WrapStar App, whether in written, electronic, oral, visual, photographic, video, or other form, including without limitation:

(a) Customer and recipient data -- names; shipping, billing, and delivery addresses; telephone numbers; email addresses; account identifiers; communications; payment-related details visible to Contractor (if any); and any other personal information of shoppers, giftees, or other individuals;

(b) Gift data -- identity, description, SKU or product information, retailer source, quantity, value or price indications, packing slips, invoices, gift messages, occasion information, and the fact that a particular person is sending or receiving a gift;

(c) Gift-wrap and order data -- wrap designs, AI or custom designs, paper/ribbon/flower selections, brand standards applied to an order, live-session and proof media, order references, status history, earnings associated with specific orders, and screenshots or exports of WrapStar App order screens;

(d) Wrrapd business and technical information -- business models; go-to-market and pricing strategies; revenue splits and Compensation Schedules (except as needed for Contractor's own tax records); supplier and retailer

relationships; hub, PO Box, and logistics arrangements; allocation and assignment logic; operational playbooks; quality and video-proof standards; training materials; trade secrets; know-how; techniques; methods; processes; workflows; systems; software; the WrapStar App and Platform architecture, features, APIs, schemas, security controls, and source or object code; credentials; internal tools; financial and volume metrics; expansion plans; and non-public terms of Wrrapd's contracts with customers, partners, or vendors; and

(e) Derivatives -- notes, copies, summaries, compilations, analyses, photographs, recordings, or other materials that contain, reflect, or are derived from any of the foregoing.

Confidential Information does **not** include information that Contractor can document: (i) is or becomes generally available to the public other than through Contractor's breach; (ii) was rightfully in Contractor's possession before disclosure by Wrrapd without confidentiality duty; or (iii) is independently developed by Contractor without use of Confidential Information. Generic gift-wrapping skills that are publicly known are not Confidential Information; Wrrapd-specific standards, designs, systems, and customer/order facts are.

12.2 Non-disclosure. Contractor shall hold all Confidential Information in strict confidence and shall **not** disclose, publish, post, broadcast, sell, license, share, or otherwise make Confidential Information available to any third party, including family members, other contractors, competitors, press, or social media, except: (a) to Wrrapd personnel who have a need to know; (b) to Contractor's professional advisors under a duty of confidentiality, solely as needed for tax or legal advice related to this engagement; or (c) as required by law, regulation, or valid legal process, in which case Contractor shall (to the extent legally permitted) give Wrrapd prompt prior written notice and reasonable cooperation so Wrrapd may seek a protective order or other remedy.

12.3 Purpose limitation; prohibited uses. Contractor shall use Confidential Information **solely** to perform the Services for assigned orders and for no other purpose. Without limiting the foregoing, Contractor shall **not**:

(a) contact, market to, solicit, or communicate with customers or recipients using Confidential Information, except as the WrapStar App expressly enables for wrapping operations; (b) scrape, harvest, copy, or bulk-export customer, gift, wrap, or Platform data; (c) use Confidential Information to compete with Wrrapd, to build a competing product or service, or to assist any third party in doing so; (d) reverse engineer or probe Platform or WrapStar App architecture, security, or allocation systems beyond ordinary use of the App; (e) retain local copies of customer, gift, or wrap data longer than needed to complete the applicable order and upload required proof, except records Contractor must keep for Contractor's own tax compliance (which remain subject to this Section 12); or (f) discuss gift contents, who is gifting to whom, wrap designs, or Wrrapd methods outside the need-to-know performance of the Services.

12.4 Standard of care. Contractor shall protect Confidential Information using at least the same degree of care Contractor uses for Contractor's own sensitive information, and in no event less than reasonable care, including locking devices, not sharing WrapStar App credentials, and avoiding unsecured storage or transmission of order screenshots or customer data.

12.5 Ownership. All Confidential Information remains the property of Wrrapd or its customers/licensors. No license is granted except the limited right to use Confidential Information as strictly necessary to perform the Services under this Agreement. Customer and gift data are entrusted to Contractor solely as a bailee/processor for order fulfillment and are not Contractor's to exploit.

12.6 Return; deletion. Upon termination, completion of an order, or Wrrapd's request, Contractor shall promptly return or permanently delete Confidential Information in Contractor's possession or control (including App downloads, downloads, photos, and notes), except: (a) proof already uploaded to Wrrapd systems; and (b) copies Contractor is legally required to retain, which remain subject to confidentiality. Contractor shall confirm deletion in writing upon Wrrapd's reasonable request.

12.7 Breach notice. Contractor shall notify Wrrapd **promptly** (and in any event within twenty-four (24) hours of discovery) of any actual or suspected unauthorized access to, use, disclosure, loss, or theft of Confidential Information, App credentials, or customer goods, and shall cooperate fully in investigation and remediation.

12.8 Injunctive relief. Contractor acknowledges that unauthorized use or disclosure of Confidential Information may cause irreparable harm for which monetary damages are inadequate. Accordingly, Wrrapd may seek temporary, preliminary, and permanent injunctive or other equitable relief in the courts specified in the Mutual Arbitration Agreement (Duval County, Florida), without the necessity of proving actual damages or posting a bond beyond what a court requires, without waiving any other rights or remedies (including arbitration of damages claims).

12.9 Compelled disclosure; residual knowledge. If Contractor is compelled to disclose Confidential Information under Section 12.2(c), Contractor shall disclose only the portion legally required and shall use reasonable efforts to obtain confidential treatment. Accidental residual memory of non-specific information does not excuse intentional use or disclosure of Confidential Information in violation of this Section 12.

12.10 Duration; survival. Obligations under this Section 12 commence upon first access to Confidential Information and **survive termination of this Agreement indefinitely** as to trade secrets and as to customer, recipient, gift, and gift-wrap data, and for no less than **five (5) years** after termination as to other Confidential Information (or longer if required by law). Breach of this Section 12 is a material breach and grounds for immediate suspension or termination and any other available remedies.

13. Intellectual Property

13.1 Wrrapd and its licensors own all right, title, and interest in the Platform, the WrapStar App, trademarks, brand standards, training materials, and customer-submitted designs and messages.

13.2 Contractor retains ownership of Contractor's pre-existing tools and generic wrapping techniques, but grants Wrrapd the license described in Section 6.5 as to live-session and proof media, and agrees that wrap executions created for Wrrapd orders may be used by Wrrapd for quality, support, and brand purposes.

13.3 Contractor shall not use Wrrapd marks except as expressly authorized to perform the Services.

14. Non-Circumvention

14.1 During the term of this Agreement and for **six (6)** months thereafter, Contractor shall not knowingly use customer or order information obtained through the WrapStar App or Platform to solicit or arrange gift-wrapping services for that customer in a manner that bypasses Wrrapd's Platform for engagements that originated on the Platform.

14.2 This Section does not prohibit Contractor from providing unrelated services to persons who independently contact Contractor without use of Platform-sourced information.

15. Brand Standards; Policies

15.1 All wrapping must meet Wrrapd's published brand, quality, and safety standards, including the WrapStar Code of Conduct and Platform Guidelines (which may be presented in the WrapStar App).

15.2 Wrrapd may suspend or deactivate Contractor's WrapStar App access for failure to meet published standards, missing or deficient proof or live session, customer complaints, ratings below published thresholds, screening issues, or other material breach.

16. Communications; Response Time

During periods when Contractor has active or assigned orders, or has indicated availability in the WrapStar App, Contractor shall monitor and respond to Wrrapd communications (in-App messages or notifications, email, or SMS as consented) within twenty-four (24) hours, or sooner if an order's timing so requires.

16A. Weekly Availability; Unavailability; Cancellation; Return of Goods

16A.1 **Weekly availability (required).** Contractor shall submit Contractor's availability for the **following calendar week** (Monday through Sunday) through the WrapStar App **no later than Friday at 6:00 p.m. Eastern Time** of the week before that work week. Availability is used to allocate gift-wrapping work. Failure to submit by the deadline may result in Contractor being treated as **unavailable** for that week (unless Wrrapd overrides in Command Center), with no guaranteed hours.

16A.2 **Immediate notice -- illness, bereavement, emergency.** If Contractor cannot work an accepted wrap window, or any portion of a submitted available day, because of sudden illness, bereavement, emergency, or any other unforeseen cause, Contractor shall notify Wrrapd **immediately** through the WrapStar App (or the then-published emergency contact channel) -- and in any event **as soon as Contractor knows**, and **no later than four (4) hours before** the published start of the affected window. Silence is a material breach.

16A.3 **Return of deliverable materials.** Upon any such notice (or upon Wrrapd's demand), Contractor shall make **all** customer merchandise, finished or unfinished wraps, labels, barcodes, and related deliverable materials in Contractor's possession available for pickup by a **backup WrapStar, JoyRider, or other person Wrrapd assigns**, staged at the door or wrapping entrance within **two (2) hours** (or the shorter window then published), consistent with Section 5A. Contractor shall not detain goods.

16A.4 **Personal liability for delay or detention.** If Contractor fails to give immediate notice under Section 16A.2, fails to return or stage goods under Section 16A.3 / Section 5A, or otherwise causes delay, missed customer promises, or reassignment cost: (a) the missed window is unpaid; (b) Wrrapd may withhold, offset, or claw back compensation and recover reasonable last-minute reassignment, replacement, and makeup-delivery costs from amounts otherwise owed to Contractor; (c) Contractor remains personally responsible under Sections 5 and 5A for loss, damage, or detention of goods; and (d) repeated late cancels or no-shows are grounds for immediate

termination.

16A.5 Illness, bereavement, or emergency does **not** excuse the notice or return duties in this Section 16A. Wrrapd's use of backup contractors is an operations matter and does not create a right to keep goods or to be paid for a missed window.

17. Term and Termination

17.1 This Agreement begins on the date of Contractor's signature (or electronic acceptance) and continues until terminated.

17.2 Either Party may terminate this Agreement at any time, with or without cause, by written, in-App, or Platform notice. Wrrapd may suspend WrapStar App and Platform access immediately for material breach, safety concerns, suspected fraud, or legal compliance reasons.

17.3 Upon termination, Contractor shall complete or safely release any goods still in Contractor's custody as Wrrapd directs (including under Section 5A), cease use of the WrapStar App, and cooperate in orderly wind-down. Sections 5, 5A, 6.5, 7.1 (as to surviving ownership/IP), 7.8, 8.6, 11, 12, 13, 14, 16A, 18, 19, and 20 survive termination.

18. Dispute Resolution; Governing Law

18.1 Any dispute arising out of or relating to this Agreement, the Companion Documents, the WrapStar App, compensation, termination, or Contractor's relationship with Wrrapd shall be resolved exclusively under the separate **Mutual Arbitration Agreement** executed concurrently herewith, which is incorporated by reference.

18.2 This Agreement is governed by the laws of the **State of Florida**, without regard to conflict-of-law principles that would require application of another jurisdiction's laws, except as the Federal Arbitration Act governs the Mutual Arbitration Agreement.

19. Entire Agreement; Amendments; Severability

19.1 This Agreement, together with the Companion Documents and Platform / WrapStar App terms and Compensation Schedules then in effect, constitutes the entire agreement between the Parties regarding the subject matter hereof and supersedes all prior proposals and agreements relating thereto.

19.2 Wrrapd may update Platform policies, WrapStar App terms presented in the App, and the Compensation Schedule prospectively. Amendments to this Agreement's core terms require electronic acceptance or written agreement, except that Companion Documents may be updated with notice and continued use or re-signature as Wrrapd requires.

19.3 If any provision is held unenforceable, the remainder shall continue in effect, and the unenforceable provision shall be modified to the minimum extent necessary to make it enforceable.

19.4 Waiver of a breach is not a waiver of any other breach. Contractor may not assign this Agreement without Wrrapd's consent; Wrrapd may assign to an affiliate or successor.

20. Electronic Acceptance; ESIGN

20.1 This Agreement and the Companion Documents are standard-form services agreements offered on a take-it-or-leave-it basis. They are not negotiated individually.

20.2 Applicant / Contractor accepts by electronic click-to-accept (for example, tapping or clicking **I Accept**) in the Wrrapd onboarding Platform, or by another electronic signature method Wrrapd provides. Acceptance under the federal Electronic Signatures in Global and National Commerce Act (ESIGN) and applicable state law has the same legal effect as a handwritten signature.

20.3 **No Company countersignature is required** on Contractor's individual packet. Wrrapd's assent is manifested by presenting this Agreement in the Platform and by activating Contractor's account / App access (or otherwise confirming engagement) after onboarding. Contractor's electronic acceptance is the final trigger that binds Contractor.

20.4 Continued use of the Platform or Apps after Wrrapd publishes an updated Agreement or Compensation Schedule (with notice via the App, email, or Platform) constitutes acceptance of the updated terms to the extent permitted by law, unless Contractor declines and ceases use as instructed.

20.5 Wrrapd may retain records of acceptance including typed name, timestamp, IP address, user agent, and packet version.